

RESOLUTION NO. _____

A RESOLUTION PRECLUDING THE RENTAL OR USE OF THE CITY'S ATHLETIC FIELDS BY STEVE AVILA OR SAA ENTERPRISES UNTIL THOSE PARTIES HAVE REPAID THE CITY OF CHEYENNE AND CHEYENNE MUSTANGS BASEBALL FOR ALL LOSSES SUSTAINED FROM THE 2017 CABA WORLD SERIES TOURNAMENT.

WHEREAS, in 2017 the City of Cheyenne, Wyoming (the "City") and Cheyenne Competitive Baseball Association, d/b/a Cheyenne Mustangs Baseball ("Cheyenne Mustangs Baseball") entered into an arrangement with Steve Avila and his company, SAA Enterprises, LLC, to host a Continental Amateur Baseball Association ("CABA") 18U wood bat world series tournament (the "2017 Tournament") to be held in Cheyenne, Wyoming on August 4, 2017 through August 12, 2017; and

WHEREAS, the City invested \$50,000.00 towards the cost of the 2017 Tournament to be repaid from the net revenues from the tournament; and

WHEREAS, the City and Cheyenne Mustangs Baseball each fulfilled all of their respective responsibilities under the agreement to sponsor and host the 2017 Tournament; and

WHEREAS, Steve Avila failed his responsibility to bring 16 teams to the 2017 Tournament, despite his repeated promises and assurances that there would be 16 qualified teams from the western United States and Canada attending the 2017 Tournament; and

WHEREAS, following Mr. Avila's failure to provide the teams for the 2017 Tournament, Mr. Avila expressly promised that he would repay the City and Cheyenne Mustangs Baseball for their losses sustained from the 2017 Tournament, including the \$50,000.00 invested by the City; and

WHEREAS, Mr. Avila has failed or refused to repay those sums to the City and Cheyenne Mustangs Baseball; and

WHEREAS, in January 2018, Steve Avila and SAA Enterprises proposed another agreement with the City whereby Mr. Avila would conduct a CABA 18U wood bat world series on the City's fields during the summer of 2018; and

WHEREAS, on February 12, 2018, the Governing Body rejected Mr. Avila's proposal for a 2018 tournament on the City's fields by a unanimous 10 – 0 vote. Mr. Avila failed to

appear at the February 12, 2018 council meeting to address the issues from the 2017 Tournament and did not communicate any reason for his absence; and

WHEREAS, subsequent to the Governing Body's unanimous rejection of Mr. Avila's proposal for a 2018 tournament on the City's fields, Mr. Avila submitted an application to rent the City's fields to hold a CABA tournament on those same dates in 2018 anyway, despite the fact that he has still not repaid the City and Cheyenne Mustangs Baseball for the losses sustained by them from the 2017 Tournament; and

WHEREAS, the City's published written policies and procedures governing the rental of City athletic fields expressly state that "the City of Cheyenne rents the Athletic Fields when it is in the best interests of the community."; and

WHEREAS, it is not in the best interests of the community to allow Mr. Avila or SAA Enterprises to rent the City's athletic fields without Mr. Avila repaying the City and Cheyenne Mustangs Baseball for the losses those parties sustained from the 2017 Tournament as a result of Mr. Avila's failures.

NOW THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING AS FOLLOWS:

1. The City hereby finds that it is not in the best interest of the community to rent the City's athletic fields to Steve Avila or SAA Enterprises due to the circumstances described in the foregoing recitals.
2. Steve Avila, SAA Enterprises, LLC, or any parties associated therewith, are hereby precluded from renting or using the City's athletic fields until those parties have repaid the City and Cheyenne Mustangs Baseball for all losses sustained from the 2017 Tournament, including but not limited to the \$50,000.00 paid by the City. Mr. Avila's hold on the City's fields shall be immediately released.
3. The officers and members of the Governing Body of the City and the employees thereof are hereby authorized and directed to take all action necessary or appropriate to effectuate the provisions of this Resolution.

Adopted this _____ day of _____, 2018.

CITY OF CHEYENNE, WYOMING

Marian J. Orr, Mayor

(S E A L)

ATTEST:

Carol Intlekofer, City Clerk